

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fendley	Team: Squad #05	CCRB Case #: 201500134	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/16/2014 5:46 AM	Location of Incident: § 87(2)(b) [REDACTED]		18 Mo. SOL 6/16/2016		Precinct: 90
Date/Time CV Reported Thu, 01/08/2015 2:58 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/08/2015 2:58 PM		
Complainant/Victim	Type	Home Address			
[REDACTED]	[REDACTED]	[REDACTED]			
Witness(es)	Home Address				
[REDACTED]	[REDACTED]				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Bijou Mathew	12287	938960	090 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Tomas Castro	15559	938196	090 PCT		
2. LT Ewa Lapinska	00000	935158	090 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Bijou Mathew	Discourtesy: PO Bijou Mathew spoke rudely to § 87(2)(b) [REDACTED]			A . Unsubstantiated	
B . POM Bijou Mathew	Abuse: PO Bijou Mathew entered and searched § 87(2)(b) [REDACTED]			B . Exonerated	

Case Summary

This complaint was filed by § 87(2)(b) via telephone with the CCRB on January 8, 2015.

On December 16, 2014, at approximately 5:46 a.m., PO Bijou Mathew of the 90th Precinct approached § 87(2)(b) in front of § 87(2)(b) in Brooklyn. § 87(2)(b) alleged that PO Mathew told him to “shut the fuck up” prior to handcuffing him in relation to a search warrant (**Allegation A**). After § 87(2)(b) was handcuffed, officers from the 90th Precinct executed a search warrant for § 87(2)(b) residence located at § 87(2)(b) in Brooklyn (**Allegation B**). § 87(2)(b) was arrested for § 87(2)(b).

Mediation, Civil Proceedings and Criminal Histories

This case was not suitable for mediation because § 87(2)(b) was arrested as a result of the incident. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

At the time this case was submitted for review by the CCRB Board, this case was not yet past the 90-day filing expiration for a notice of claim with the City of New York. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This is the first complaint filed by § 87(2)(b) (encl. 1 B). PO Mathew has been a member of the service for nine years and there are no substantiated complaints against him (encl. 1 A).

Investigative Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A – Discourtesy: PO Bijou Mathew spoke rudely to § 87(2)(b)

§ 87(2)(b) said that he walked out of his building and was on his way to his vehicle when PO Mathew approached him. § 87(2)(b) alleged that upon PO Mathew’s approach, PO Mathew told him to “shut the fuck up.” He was then handcuffed. § 87(2)(b) said that there was one Hispanic male that witnessed the incident. However, § 87(2)(b) did not know that male’s

name and only knew that he lived at § 87(2)(b) in Brooklyn. § 87(2)(b) did not know what apartment the male resided in and only knew that it was one of thirty-six units on the fifth floor of that building. Because § 87(2)(b) could not provide any additional information regarding the one witness to the allegation, that male was unable to be identified (encl. 3 B-C).

PO Mathew denied telling § 87(2)(b) to “shut the fuck up” and denied using any profanity at all throughout the incident. Further, PO Mathew confirmed that because he was the officer assigned to observe the location prior to the execution of the search warrant, he was the only officer present at the time of § 87(2)(b) arrest (encl. 4 H-I).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: PO Bijou Mathew entered and searched § 87(2)(b), in Brooklyn.

It is undisputed that on December 16, 2014, officers entered and searched § 87(2)(b) apartment based on a valid search warrant, #§ 87(2)(b) obtained by PO Mathew (encl. 5 V-AB). § 87(2)(b) also alleged that PO Mathew pointed his gun at § 87(2)(b).

According to New York State Criminal Procedure Law 690.50, subsection 1, officers may search a premises under the authority of a valid search warrant (encl. A-C).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **exonerated**.

Pod: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date